AMA LEGAL SOLUTIONS

PRIVATE CLIENT & ESTATE PRACTICE • DIRECT WILL DRAFTING

Client Information & Document Requirements for Will Drafting

A complete, confidential intake guide outlining the personal details, family structure, asset inventory, bequest instructions, and supporting documents required by **AMA Legal Solutions** to custom-draft a legally watertight Last Will and Testament.

01 Personal Profile of the Testator (Person Making the Will)

PRIMARY DECLARANT

- **Full Legal Name:** Strictly as recorded on PAN Card, Aadhaar Card, or Passport (along with any former names or aliases).
- **Parent / Spouse Name:** Full name of Father, Mother, or Spouse for statutory legal identification.
- **Date of Birth & Current Age:** Exact date of birth and completed age as on the date of drafting.
- **Gender & Marital Status:** Single, Married, Widowed, Divorced, or Legally Separated.
- **Occupation / Profession:** Current profession, business designation, or retired status.
- **Residential & Permanent Address:** Complete current address and permanent address with PIN code.
- **Nationality & Residential Status:** Resident Indian, NRI, OCI Cardholder, or Foreign Citizen.
- **Identity Numbers:** PAN Number, Aadhaar Number, and Passport Number (mandatory for NRIs / Foreign Nationals).
- **Contact Coordinates:** Active Mobile Number and Personal Email ID.
- **Prior Will / Codicil Details:** Date & registration details of any previous Will to include an express revocation clause.

02 Family Structure & Natural Legal Heirs

FAMILY TREE MAPPING

Listing all immediate family members ensures clarity of the family tree in the Will preamble and prevents future claims of accidental omission by any natural heir.

FAMILY CATEGORY	INFORMATION REQUIRED FOR EACH MEMBER	SPECIAL LEGAL CONSIDERATIONS
Immediate Family Spouse, Sons, Daughters (biological, adopted, or step-children), Parents	• Full Legal Name & Exact Relationship • Date of Birth / Current Age & Marital Status • Current Residential Address • ID Reference (PAN / Aadhaar / Passport No.)	• Indicate if any child or dependent is a **Minor (below 18 years)**. • Indicate if any family member has **Special Needs** requiring lifelong care or a trust.
Extended Heirs Brothers, Sisters, or Grandchildren (where applicable)	• Full Legal Name, Parent/Spouse Name & Relationship • Age, Address & ID Proof Details	• Required if the Testator is unmarried, has no lineal descendants, or wishes to include them.

Important — Exclusion / Disinheritance Clause: If you choose to exclude any immediate legal heir (such as a spouse, son, or daughter) or allocate them a significantly smaller share, please share a brief, factual reason. Recording a clear, deliberate exclusion clause protects the Will from challenges on grounds of "suspicious circumstances" or oversight.

03 Details of External Beneficiaries & Charitable Legatees

LEGATEE IDENTIFICATION

A. Individual Beneficiaries (Outside Immediate Family)

- **Full Name & Parent/Spouse Name:** For unmistakable identity of relatives, friends, or household staff.
- **Relationship, DOB & Address:** Complete contact address, phone, email, and PAN / Aadhaar / Passport number.

B. Charitable Trusts, NGOs & Institutions

- **Registered Entity Details:** Exact legal name of the Trust/Society/NGO, Registration Number, and Trust PAN.
- **Address & Purpose:** Registered office address and any specific direction on how the bequest should be utilized.

04 Comprehensive Inventory of Assets — Real Estate & Financial Portfolio

MOVABLE & IMMOVABLE ESTATE

We do not need the current market value of every asset unless you wish to divide your estate by monetary value. However, **precise identifying details** (property numbers, folio/account numbers, and ownership mode) are essential so beneficiaries face zero hurdles during transmission or mutation.

CATEGORY 4A — Immovable Properties (Residential, Commercial, Plots & Agricultural Land)

- **Property Classification:** Residential Apartment/Flat, Independent House/Bungalow, Commercial Office/Shop, Industrial Plot, or Agricultural Land.
- **Complete Property Description:** Flat/House/Unit No., Floor, Wing/Tower, Building/Society Name, Plot/Survey/Khasra/Khata No., Area (Sq. Ft. / Sq. Yds. / Acres), Street, Tehsil/District, City, State & PIN Code.
- **Nature of Acquisition:** Specify whether the property is **Self-Acquired** or **Ancestral / Inherited / Joint Family Property** (crucial to determine your exact transferable share).
- **Ownership Structure:** Sole Ownership or Joint Ownership. If jointly held, provide the Co-Owner's full name, relationship, and your exact **percentage share (e.g., 50%)**.
- **Title Document Particulars:** Registered Sale Deed / Conveyance Deed / Gift Deed / Builder Buyer Agreement date, Registration Number, Book/Volume No., and Sub-Registrar Office.
- **Encumbrances / Active Loans:** Details of any existing Home Loan or Mortgage (Bank/Lender Name, Loan A/c No.) and whether the loan is covered by mortgage insurance, paid from the estate, or borne by the beneficiary.

CATEGORY 4B — Bank Accounts, FDs & Safe Deposit Lockers

- **Savings / Current / NRI Accounts:** Bank Name, Branch Address, Account Number, Account Type (Savings, Current, NRE, NRO, FCNR), and Mode of Holding (Single / Joint / Either or Survivor).
- **Fixed & Recurring Deposits:** Bank/Corporate FD Institution Name, FD Receipt / Account Numbers, and holding pattern.
- **Bank Lockers:** Bank Name, Branch, Locker Number, Joint Operator Name (if any), and instructions regarding physical key custody.
- **Registered Nominee Name:** Current nominee recorded with the bank for each account/locker.

CATEGORY 4C — Investments, Securities & Retirement Funds

- **Demat Accounts & Equities:** Depository (NSDL/CDSL), DP Name (Broker/Bank), DP ID, and Client ID (16-digit BO ID), plus any physical share certificates.
- **Mutual Funds, PMS & AIF:** AMC / Fund House Names, Folio Numbers, or Consolidated Account Statement (CAS) reference.
- **Bonds & Debentures:** Sovereign Gold Bonds (SGB), RBI Floating Rate Bonds, Corporate Bonds, or Tax-Free Bonds.
- **Retirals & Small Savings:** EPF (UAN), PPF Account No., NPS (PRAN), Gratuity, Superannuation, Post Office MIS, NSC, KVP, or Senior Citizen Savings Scheme (SCSS).

CATEGORY 4D — Life Insurance, Term Plans, Annuities & Endowment Policies

- **Policy Identification:** Name of Insurance Company (e.g., LIC, HDFC Life, ICICI Prudential), Policy Number, and Plan Type (Term, Endowment, Whole Life, ULIP, Annuity).
- **Sum Assured & Status:** Approximate Sum Assured / Death Benefit and whether policies are active or paid-up (including Policies under the Married Women's Property Act, if any).
- **Nominee Alignment:** Name of the currently registered nominee on the policy.
- **Legal Position on Nominees:** Under Indian law, a nominee is merely a custodian/trustee created to receive funds from the institution; the **beneficiary named in your Will is the true legal owner** of the proceeds.

04 Inventory of Assets (Continued) — Valuables, Vehicles, Business & Digital

SPECIALIZED ASSETS

CATEGORY 4E Jewellery, Bullion, Art & Heirlooms

- **Precious Metals & Stones:** Gold, diamond, silver, and platinum jewellery, gold bars/coins, and silverware (itemized list or broad category description with approximate weight).
- **Luxury & Collectibles:** High-value watches, fine paintings, sculptures, antiques, and family heirlooms, along with their storage location (Bank Locker / Home Safe).

CATEGORY 4F Motor Vehicles & Conveyances

- **Vehicle Identification:** Make, Model, Variant, Registration Number (RC No.), and Year of Registration.
- **Hypothecation / Auto Loan:** Details of any ongoing vehicle finance/loan and RTO registration state.

CATEGORY 4G Business Interests & Intellectual Property

- **Unlisted / Pvt. Ltd. Companies:** Company Name, CIN, Folio/Share Certificate Nos., No. of Shares, and % equity stake.
- **Partnership Firms & LLPs:** Firm/LLP Name, LLPIN, Capital & Profit-sharing ratio (requires checking the Partnership/LLP Deed for succession clauses).
- **Sole Proprietorship & IP:** Trade Name, GSTIN, Current A/cs, Trademarks, Patents, Copyrights, and Royalty Agreements.

CATEGORY 4H Digital Assets & Financial Receivables

- **Digital & Crypto Assets:** Cryptocurrency wallets/exchange accounts, domain portfolios, monetized social/YouTube channels, and cloud/digital repositories.
- **Loans Given & Receivables:** Documented loans given to third parties, promissory notes, capital advances, or refundable security deposits due back to the Testator.

05 Schedule of Liabilities, Debts & Financial Obligations

ESTATE SETTLEMENT

- **Active Borrowings:** Details of any unpaid Home Loans, Personal Loans, Business Guarantees, Overdrafts, Credit Card dues, or private borrowings.
- **Statutory & Tax Dues:** Any pending income tax, property tax, or contractual liabilities.
- **Source of Debt Repayment:** Specify whether liabilities, probate fees, and administrative costs should be paid out of a **designated liquid fund/bank account** or borne by the respective asset beneficiary.

06 Asset Distribution & Bequest Plan ("Who Gets What")

CORE DISPOSITIONS

- **1. Specific Asset Mapping:** Clear instructions linking each property, account, or asset to one or more **Primary Beneficiaries** along with exact percentage shares (e.g., 50% each to two children, or 100% to spouse).
- **2. Alternate / Substitute Beneficiaries:** For every bequest, name a backup beneficiary who will inherit that share if the primary beneficiary predeceases you.
- **3. Life Interest & Conditional Clauses (Optional):** E.g., granting your spouse a *Life Interest* (lifetime right to reside in the house or receive rental/dividend income), after which full ownership vests in the children; or age-based vesting (e.g., at age 21 or 25).
- **4. Residuary Estate Clause (Mandatory):** Name the Primary and Alternate **Residuary Beneficiaries** who will inherit any asset not specifically listed in the Will or acquired by you *after* signing the Will.

07 Key Statutory Appointments (Executors, Guardians, Witnesses & Doctor)

FIDUCIARIES & ATTESTATION

ROLE / APPOINTMENT	REQUIRED DETAILS	LEGAL GUIDELINES & BEST PRACTICES
Executor(s) of the Will (1 Primary + 1 Alternate or 2 Joint Executors)	Full Name, Father's/Spouse's Name, Relationship with Testator, DOB/Age, Occupation, Full Address, Phone, Email & PAN/Aadhaar No.	The Executor administers the estate and distributes assets as per your Will. Choose a trusted, preferably younger individual. *A beneficiary CAN legally be an Executor.*
Guardian(s) for Minors / Dependents (If applicable)	Primary & Alternate Guardian's Full Name, Father's/Spouse's Name, Relationship, Age, Address, Phone & PAN/Aadhaar No.	Appoints a trusted custodian for minor children (under 18) or special-needs dependents if both parents pass away. Can be paired with a **Testamentary Trust**.
Two Attesting Witnesses (Mandatory for Execution)	Full Name, Father's/Spouse's Name, Age, Occupation, Complete Residential Address, Phone Number & Aadhaar/PAN No.	**CRITICAL RULE:** Witnesses must be 18+ and of sound mind, and **MUST NOT be beneficiaries (or spouses of beneficiaries)** named in the Will, otherwise their bequest becomes void.
Medical Practitioner (Doctor's Certificate)	Doctor's Full Name, Qualification, Medical Council Registration Number, and Hospital/Clinic Address.	Strongly recommended to certify that the Testator is of **sound and disposing state of mind** at the time of signing the Will.

08 Special Wishes & Execution / Registration Preferences

PERSONAL DIRECTIVES

- **Funeral & Last Rites:** Any specific preferences regarding funeral ceremonies, cremation/burial, or memorial rituals.
- **Organ / Body Donation & Pet Care:** Existing organ donation pledges, or appointment of a caretaker and maintenance fund for pets.
- **Personal Message to Family:** Any legacy note or moral guidance you wish to include in the Will.
- **Sub-Registrar Registration:** Indicate if you wish to register the Will before the Sub-Registrar (recommended for high-value estates to prevent forgery or tampering claims).

09 Master Checklist of Supporting Documents (Clear Scans / Photocopies)

VERIFICATION ANNEXURES

- ☐ **1. Testator KYC Proofs:** Copy of PAN Card, Aadhaar Card, and Passport (mandatory for NRIs / Foreign Citizens).
- ☐ **2. KYC of Appointed Parties:** Aadhaar / PAN / Passport copies of all Beneficiaries, Executors, Guardians & 2 Witnesses.
- ☐ **3. Real Estate Title Deeds:** Registered Sale Deed, Gift Deed, Conveyance Deed, Allotment Letter, or Co-op Society Share Certificate.
- ☐ **4. Property Municipal Records:** Latest Property Tax Receipt, Mutation/Khata Certificate, or 7/12 Revenue Extract.
- ☐ **5. Banking & Deposit Proofs:** First page of Bank Passbooks / Account Statements, FD Receipts, and Locker Agreement reference.
- ☐ **6. Investments & Demat:** Latest NSDL/CDSL Consolidated Account Statement (CAS), Mutual Fund Folios, PPF/EPF/NPS details.
- ☐ **7. Insurance & Vehicles:** Life/Term Insurance Policy Schedules and Vehicle Registration Certificates (RC copies).
- ☐ **8. Business & Prior Legal Docs:** Partnership/LLP Deed, Unlisted Share Certificates, Prior Will/Codicil, and Doctor's Fitness Certificate.

Ready to Initiate Your Custom Will Drafting?

Share the compiled details and documents with your dedicated Estate Planning Counsel at AMA Legal Solutions.

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